H+L architecture

January 15, 2009

Don Ciancio
Director of Maintenance & Operations
Adams County School District 50
7002 Raleigh
Westminster, Colorado 80030

Re: Adams 50 New Josephine Hodgkins Elementary School

Dear Don:

This letter serves to confirm that no materials have been specified within the new Josephine Hodgkins Elementary School containing asbestos. Per Division 1 Section 2.32 Article 10.3 of the project manual, it is the responsibility of the both the sub and general contractor to notify the owner of any items that have been installed which do not comply to this specification. At the date of substantial completion, we believe all materials installed have complied with this intent.

Please contact H+L Architecture if you have further or future questions in regards to this issue.

Thank you,

H+L ARCHITECTURE

Brian Burt

Attachment: Div. 1 pdf.

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$1,000,000 to $1,999,999	$1000 + .03% of Contract amount exceeding $1,000,000
$2,000,000 to $5,999,999	$1,500 + .02% of Contract amount exceeding $2,000,000
$6,000,000 and Greater	$2,000 + .01% of Contract amount exceeding $6,000,000

Additionally, for each and every calendar day in excess of the date(s) established by the Certificate of Substantial Completion for completion of the punch-list, liquidated damages shall accrue in an amount equal to 1.5 times the above stated amounts.

2.31 ARTICLE 10 - PROTECTION OF PERSONS AND PROPERTY, 10.2 SAFETY OF PERSONS AND PROPERTY

A. Add the following new Subparagraph 10.2.8:

The Contractor shall take over and assume all responsibility for the areas of work that are covered under the Contract Documents. The Contractor shall provide and maintain all protection as required by the governing laws, rules, regulations, and ordinances. The Contractor shall be responsible for any loss or damage caused by him or his workmen to the property of the Owner and shall make good any loss, damage, or injury without cost to the Owner.

The protection shall include but not be limited to: all property including sod, landscaping materials (bushes, trees, etc.), sidewalks, drives, buildings, as well as interior areas leading to the construction areas. The Contractor shall also provide protection for the public, including students, staff, and the general school community during the construction time of the entire project. This may be done through, including but not limited to: fencing, barricading, and other means of restricting entry to or through the construction area(s).

B. Add the following new Subparagraph 10.2.9:

The Contractor shall be solely responsible for the safety of his work, materials, equipment, tools, etc., on the site and shall, if he deems it necessary or expedient, employ at his own expense the services of a competent watchman. The Owner disclaims all responsibilities for the safety of the work, materials, equipment, tools, etc., or for any damage which may be done to same, due to theft or any other cause, until such time as the completed work is formally accepted by the Owner.

C. Add the following new Subparagraph 10.2.10:

The Contractor shall take special precautions against fire and shall comply fully with the requirements of city, county, and insurance authorities including stipulation as outlined below:

1. Combustible refuse shall be removed from within the building and disposed of daily in a manner approved by the governing authorities and Project Manager.
2. Private and public streets, sidewalks, roads, etc., shall be protected and maintained during the course of work, and any damage to same shall be repaired by the Contractor at his own expense.

2.32 ARTICLE 10 - PROTECTION OF PERSONS AND PROPERTY, 10.3 HAZARDOUS MATERIALS

A. Add the following to Subparagraph 10.3.1:

Asbestos-Containing Materials:
In the event that asbestos–containing materials or suspected asbestos-containing materials are discovered in the area designated for construction, the Contractor assumes responsibility to notify to the Owner and all workmen of existing asbestos conditions. Notification shall be made on approved EPA Forms and includes posting of notices in accordance with EPA and OSHA Guidelines. The Contractor shall assume all responsibility for compliance with applicable codes and regulations regarding discovery and notification of the presence of asbestos containing material. Work shall not continue until the Owner, upon proper notification from the Contractor or Subcontractor, has the suspected asbestos containing materials analyzed in accordance with Subparagraph 10.3.2. This will be done promptly by the Owner. If the Contractor proceeds after notification by the Owner not to proceed, the Contractor shall become liable for all costs associated with the cleaning and clearance for occupancy (Using TEM clearance testing method set out by the AHERA Regulations) of the structure or site.

It is the intent of the Owner NOT to include asbestos-containing materials and/or equipment into the Work. Contractors, material and equipment suppliers, and material and equipment manufacturers will notify the Architect and Owner in writing immediately upon becoming aware of any material and/or equipment included in the Contract Documents that contain asbestos so that alternative material and/or equipment can be submitted. Contractors, material and equipment suppliers, and material and equipment manufacturers who provide material and equipment that contain asbestos will be liable for the cost of removal of such material and equipment from the Work and the Contractor shall obtain the acknowledgment of all such suppliers and manufacturers of their liability for such removal.

2.33 ARTICLE 11 - INSURANCE AND BONDS, 11.1 CONTRACTOR'S LIABILITY INSURANCE

A. Modify Subparagraph 11.1.1 as follows:

In the first sentence delete the following: "in a company or companies lawfully authorized to do business in the jurisdiction in which the Project is located"

In the first line following the word "maintain" insert the words "in a company or companies licensed to do business in the State of Colorado."

B. Add the following new Subparagraph 11.1.1.9:

Comprehensive liability insurance, on an occurrence basis shall include all major divisions of coverage.

1. Premises Operations (including X/C/U as applicable.)
2. Independent Contractor's Protective.
3. Products and Completed Operations.
4. Personal Injury Liability with Employment Exclusion deleted.
5. Contractual - including specified provision for Contractor's obligation under Paragraph 3.18.
6. Owned, non owned and hired motor vehicles.
7. Broad Form Property Damage, including Completed Operations.

C. Delete 11.1.2 in its entirety and substitute the following revised language:

The insurance required by 11.1.1 shall be procured and maintained for the duration of the Contract and shall be